

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
MATIAS RIVERA,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER MICHAEL GILLIGAN, AND
POLICE OFFICER PETER MCCARTHY,

Defendants.
-----X

SUMMONS

Plaintiff designates
New York County as the
place of trial.

The basis of venue is:

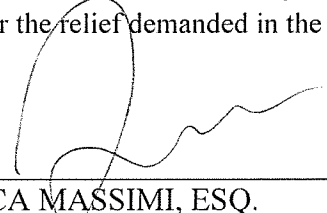
Location of Occurrence:

County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 23, 2018



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiff
MATIAS RIVERA
Financial Square at 32 Old Slip - 8th FL
New York, New York 10005
(212) 962-1020
Our File No. 26555

TO:

THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
New York, NY 10007

POLICE OFFICER MICHAEL GILLIGAN
33rd Precinct
2207 Amsterdam Avenue
New York, NY 10032

POLICE OFFICER PETER MCCARTHY
33rd Precinct
2207 Amsterdam Avenue
New York, NY 10032

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MATIAS RIVERA,

Plaintiff,

COMPLAINT

-against-

JURY TRIAL
DEMANDED

THE CITY OF NEW YORK,
POLICE OFFICER MICHAEL GILLIGAN, AND
POLICE OFFICER PETER MCCARTHY

Defendants.
-----X

Plaintiff, MATTIAS RIVERA, by and through his attorneys, **THE LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, as and for his Verified Complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. This court has jurisdiction over each federal claim pursuant to concurrent jurisdiction.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in New York County in the State of New York.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff, MATTIAS RIVERA, is, and has been, at all relevant times, a resident of the County of New York, City and State of New York.
7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
9. At all times hereinafter mentioned, the individually named defendants, POLICE OFFICER MICHAEL GILLIGAN, AND POLICE OFFICER PETER MCCARTHY, were a duly sworn members of said department and were acting under the supervision of said department and according to their official duties. Each Defendant is sued herein in their official and individual capacities. At all times hereinafter mentioned, each Defendant was assigned to the 33rd Precinct of the NYPD.
10. At all times hereinafter mentioned the defendants, either personally or through their

employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

13. On September 29, 2016, at approximately 4:15 p.m., Plaintiff MATTIAS RIVERA was lawfully walking on 167th Street between Amsterdam and Audubon Avenues, in the County, City and State of New York.
14. At this time, Defendants POLICE OFFICER MICHAEL GILLIGAN, AND POLICE OFFICER PETER MCCARTHY, arrived at the location on duty.
15. Without any legal justification or excuse, the Defendants, searched, and questioned the Plaintiff.
16. The search revealed no evidence of any guns, drugs, or contraband.
17. Plaintiff was not engaged in any unlawful or suspicious activity.
18. Nonetheless, the Plaintiff was formally arrested, was placed in handcuffs, and was transported to the station house of a local area precinct believed to be the 33rd Precinct where he was searched and detained for several hours.
19. The search yielded no evidence of any guns, drugs, or contraband
20. At no time on September 29, 2016, did Plaintiff commit any crime or violation of law.
21. At no time on September 29, 2016, did Defendants possess probable cause to arrest Plaintiff

or to order Plaintiff's arrest.

22. At no time on September 29, 2016, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
23. Plaintiff was held for several hours at the stationhouse before he was issued a desk appearance ticket with a future court date and released from custody.
24. Plaintiff was forced to return to court on the basis of several false allegations made by the Defendants, including, but not limited to, their allegations that Plaintiff threw heroin to the ground.
25. Accordingly, Plaintiff was falsely charged with criminal possession of a controlled substance in the Seventh Degree.
26. These and other allegations were false and Defendants knew they were false when they made them.
27. Pursuant to these false allegations, the Plaintiff was criminally charged with crimes he had not committed.
28. Plaintiff charges were eventually dismissed nearly one year after his arrest.
29. Defendants provided knowingly false and misleading information to prosecutors at the New York County District Attorney's Office.
30. Each of the allegations were false and the Defendants knew them to be false when they were made.
31. As a result of the foregoing, Plaintiff MATTIAS RIVERA sustained, *inter alia*, deprivation of his constitutional rights.
32. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.

33. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
34. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
35. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
36. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF FOR
FALSE ARREST
UNDER 42 U.S.C. § 1983**

37. Plaintiff MATTIAS RIVERA repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
38. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was falsely arrested without probable cause

**SECOND CLAIM FOR RELIEF FOR
DENIAL OF RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

39. Plaintiff, MATTIAS RIVERA, repeats, reiterates, and realleges each and every allegation set

forth above with the same force and effect as if fully set forth herein and at length.

40. At no time did Defendants have any legal basis for commencing criminal process, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.
41. Defendants misrepresented and falsified evidence to the New York County District Attorney.
42. Defendants did not make a complete and full statement of facts to the District Attorney.
43. Defendants withheld exculpatory evidence from the District Attorney.
44. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.
45. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.
46. Defendants acted with malice in initiating criminal proceedings against Plaintiff.
47. Defendants directly and actively involved in the continuation of criminal proceedings against Plaintiff.
48. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.
49. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings against Plaintiff.
50. Notwithstanding the perjurious and fraudulent conduct of Defendants the criminal proceedings were terminated in Plaintiff's favor when he was acquitted after a trial.
51. By so doing, the individual Defendants, individually and collectively, subjected Plaintiff to fabrication of evidence, denial of fair trial, and denial of due process, and thereby violated, conspired to violate, and aided and abetted in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.
52. By reason thereof, the individual Defendants have violated 42 U.S.C. §1983 and caused

Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

**THIRD CLAIM FOR RELIEF FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

53. Plaintiff, MATTIAS RIVERA, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
54. Defendants fabricated knowingly false material evidence and forwarded said evidence to prosecutors at the New York County District Attorney's Office.
55. As a result, Plaintiff suffered deprivation of his liberty, as he was required to make numerous court appearances to contest the false accusations against him.
56. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear for his safety, and he was detained and falsely arrested, detained, and maliciously prosecuted without probable cause.

**FOURTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

57. Plaintiff, MATTIAS RIVERA, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
58. Defendants arrested, searched, and incarcerated plaintiff, MATTIAS RIVERA, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety, and violate his constitutional rights.
59. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority

attendant thereto.

60. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
61. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
62. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
 - iii. falsifying evidence and testimony to support those arrests;
 - iv. falsifying evidence and testimony to cover up police misconduct.
63. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, MATTIAS RIVERA.

64. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
65. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
66. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiff was placed under arrest unlawfully.
67. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.
68. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.
69. All of the foregoing acts by defendants deprived Plaintiff of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

WHEREFORE, the Plaintiff respectfully requests judgment against Defendants on each of the foregoing causes of action as follows:

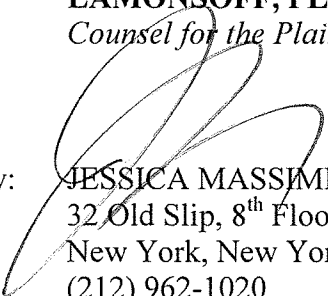
- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper,

together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
January 23, 2018

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

By:  JESSICA MASSIMI
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020

VERIFICATION

STATE OF NEW YORK }
 } ss:
COUNTY OF NEW YORK }

Matias Rivera, being duly sworn, deposes and says:

I am a Plaintiff in the action herein: I have read the contents of the annexed Summons & Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters not stated upon knowledge is based upon facts, records and other personal information contained in my personal files.

Dated: New York, New York
January 22, 2018

x Matias Rivera
Matias Rivera

Sworn to before me this
22nd day of January, 2018

Sandra Ferrar
Notary Public

